

Meridian & Associates LLP

Global Professional Services

Commercial Terms and Legal Framework

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Meridian & Associates LLP

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1. Master Services Agreement Overview

Meridian & Associates LLP engages clients under a Master Services Agreement (MSA) supplemented by project-specific Statements of Work (SOWs). The MSA establishes the overarching legal and commercial framework, while each SOW defines scope, deliverables, timeline, team composition, and fees for individual engagements.

This document summarizes the standard commercial and legal terms included in Meridian's MSA template (version 12.4, effective January 2026). Terms are subject to negotiation on a case-by-case basis, with deviations from standard terms requiring approval from the Office of General Counsel.

- MSA term: 3 years with automatic 1-year renewals unless either party provides 90 days' written notice of non-renewal.
- SOW execution: Each SOW must reference the MSA and be signed by authorized representatives of both parties.
- Change orders: Scope changes processed through a formal Change Order process with mutual written agreement on adjusted fees and timelines.
- Governing law: Specified per engagement (typically the jurisdiction where the majority of services are performed).

2. Fee Structures and Rate Cards

Meridian offers flexible fee arrangements tailored to the nature and risk profile of each engagement:

2.1 Time and Materials

Standard hourly rates by level (U.S. market, FY2026). Rates are adjusted by geography and service line. Offshore and nearshore delivery rates are 30-40% below onshore rates.

- Partner / Managing Director: \$750 - \$1,100 per hour
- Senior Director / Director: \$550 - \$750 per hour
- Senior Manager: \$400 - \$550 per hour
- Manager: \$300 - \$400 per hour
- Senior Consultant: \$225 - \$300 per hour
- Consultant: \$175 - \$225 per hour
- Analyst: \$125 - \$175 per hour

2.2 Alternative Fee Arrangements

- Fixed Fee -- Agreed upon for well-defined scopes. Invoiced on a milestone basis.
- Capped Fee -- Time and materials with an agreed maximum. Provides cost certainty with flexibility for scope variation.
- Risk/Reward -- Base fee plus performance-based component tied to agreed KPIs or outcomes. Typically used for transformation engagements.
- Retainer -- Monthly or quarterly retainer for ongoing advisory relationships. Includes a specified number of hours/days with overage billed at agreed rates.
- Blended Rates -- Single blended rate for mixed-seniority teams. Commonly used for delivery center-based engagements.

2.3 Rate Escalation

Standard rate escalation is capped at 3% per annum, applied at each MSA anniversary. Multi-year fixed-fee engagements include escalation provisions in the SOW. Rate changes are communicated 60 days in advance.

3. Liability and Indemnification

3.1 Limitation of Liability

- Aggregate Liability Cap: 2x the annual fees paid or payable under the applicable SOW in the 12 months preceding the claim.
- Per-Incident Cap: 1x annual fees under the applicable SOW.
- Exclusions from Cap: Fraud, willful misconduct, gross negligence, breaches of confidentiality, IP infringement indemnity, and data breach indemnity are carved out from the liability cap.
- Consequential Damages: Neither party is liable for indirect, incidental, consequential, special, or punitive damages, except in cases of fraud, willful misconduct, or breach of confidentiality.

3.2 Indemnification

- Meridian indemnifies the client against third-party claims arising from: (a) IP infringement by Meridian deliverables, (b) Meridian's negligent acts or omissions, (c) breach of applicable data protection laws attributable to Meridian.
- Client indemnifies Meridian against third-party claims arising from: (a) client-provided materials, data, or instructions, (b) client's use of deliverables outside the agreed scope.
- Indemnification Procedures: Prompt written notice, sole control of defense by indemnifying party, reasonable cooperation by indemnified party.

4. Intellectual Property

- Client Deliverables: Upon full payment, the client receives ownership of all bespoke deliverables created specifically for the engagement (work product).
- Pre-Existing IP: Meridian retains ownership of all pre-existing intellectual property, methodologies, tools, frameworks, and software (collectively, 'Meridian IP'). Client receives a non-exclusive, royalty-free license to use embedded Meridian IP solely as part of the delivered work product.
- Knowledge and Expertise: Meridian retains the right to use general knowledge, skills, experience, techniques, and ideas gained during the engagement.
- Open Source: Any open source components included in deliverables are disclosed in a Bill of Materials with applicable licenses identified.

5. Insurance Coverage

Meridian maintains comprehensive insurance coverage through a program placed with A-rated (AM Best) carriers:

- Professional Liability (Errors & Omissions): \$100 million per occurrence / \$200 million aggregate. Covers professional negligence, errors, or omissions in service delivery.
- Cyber Liability and Technology E&O: \$50 million per occurrence / \$100 million aggregate. Covers data breaches,

cyber incidents, technology failures, and regulatory defense costs.

- Commercial General Liability: \$25 million per occurrence / \$50 million aggregate. Covers bodily injury, property damage, and personal/advertising injury.
- Workers' Compensation: Statutory limits in all jurisdictions.
- Employment Practices Liability: \$25 million per occurrence / \$50 million aggregate.
- Directors & Officers Liability: \$50 million per occurrence.
- Crime / Fidelity: \$10 million per occurrence.
- Umbrella / Excess: \$100 million aggregate over primary layers.

Certificates of Insurance are provided upon request. Additional insured status and waiver of subrogation are available for specific clients as endorsements.

6. Payment Terms

- Standard Payment Terms: Net 30 days from invoice date.
- Invoicing Frequency: Monthly in arrears for T&M engagements. Milestone-based for fixed-fee engagements.
- Late Payment: Interest at 1.5% per month (or the maximum permitted by law, whichever is lower) on overdue balances.
- Expenses: Reasonable travel and out-of-pocket expenses invoiced at cost, subject to the firm's travel policy and agreed expense caps.
- Currency: Invoiced in the local currency of the primary engagement location unless otherwise agreed. Multi-currency arrangements available for global programs.
- Electronic Invoicing: Meridian supports all major e-invoicing formats (Ariba, Coupa, Tungsten, Taulia, EDI 810) and can onboard to client-specific procurement platforms.

7. Term, Termination, and Transition

- Termination for Convenience: Either party may terminate an SOW with 30 days' written notice. Client pays for work completed and non-cancellable expenses incurred through the termination date.
- Termination for Cause: Either party may terminate immediately upon material breach that remains uncured for 30 days after written notice.
- Transition Assistance: Upon termination, Meridian will provide up to 90 days of transition assistance at agreed rates to ensure orderly handover of work product, knowledge transfer, and data migration.
- Data Return/Destruction: Within 30 days of engagement completion or termination, all client data will be returned or destroyed per the client's instruction, with a certification of destruction provided.

8. Dispute Resolution

- Step 1 -- Executive Escalation: Disputes escalated to senior leadership (Engagement Partner and client executive sponsor) for good-faith resolution within 15 business days.
- Step 2 -- Mediation: If unresolved, parties agree to mediation administered by JAMS under its mediation rules. Costs shared equally.
- Step 3 -- Arbitration: If mediation fails within 45 days, disputes are resolved by binding arbitration administered by JAMS under its Comprehensive Arbitration Rules. Single arbitrator for claims under \$5M; three-arbitrator panel for

claims \$5M and above.

- Injunctive Relief: Either party may seek injunctive relief from a court of competent jurisdiction for breaches of confidentiality or IP provisions.

9. Regulatory and Compliance Provisions

- Anti-Corruption: Both parties warrant compliance with the FCPA, UK Bribery Act, and applicable local anti-corruption laws.
- Sanctions: Meridian complies with all applicable economic sanctions and export control laws (OFAC, EU, UN). Screening performed for all new clients and engagements.
- Modern Slavery: Meridian's Modern Slavery Statement is published annually in accordance with the UK Modern Slavery Act 2015 and Australian Modern Slavery Act 2018.
- Right to Audit: Client has the right to audit Meridian's compliance with the terms of the MSA upon 30 days' written notice, no more than once per calendar year, during business hours.